



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

January 2, 2024

Re: CCRB Case No. 201909139 (Incident Date: September 8, 2019) involving Police Officer Jesse Trap, Tax No. 960033 (DADS Nos. 2021-23968, 2022-26462, and 2023-27836)

Dear Mr. Darche:

The Police Commissioner has reviewed the Civilian Complaint Review Board's (CCRB) recommended penalty regarding the substantiated allegations against Police Officer Jesse Trap. While the Police Commissioner agrees with the proposed penalty, he disagrees, in part, with the findings.

In this matter, three incidents occurred at different times. The Police Commissioner agrees with CCRB's findings regarding the first incident which occurred on September 8, 2019 (Case no. 2021-23968), and the second which happened on January 16, 2021 (Case no. 2022-26462).

However, concerning the third incident that occurred on October 16, 2021 (Case no. 2023-27836), the Police Commissioner does not agree with the findings. A female called 911 regarding an individual with a knife. When Police Officer Trap arrived, he saw two (2) males struggling with a knife and determined that one of the males was to be arrested. The arrestee was escorted to the police vehicle. The individual's brother approached the police vehicle too closely to talk to his brother, and Officer Trap described the brother as getting too close for everyone's safety. Police Officer Trap further stated that the individual's brother made a threatening punching motion and could have caused harm. Officer Trap pushed the brother back after it became apparent that he would not cooperate. After carefully reviewing available camera footage, it is clear that the individual's brother was angry when speaking with Police Officer Trap. He drew his arm back and balled his hand into a fist when

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Police Officer Trap attempted to back him up. Thoroughly assessing the situation, Officer Trap's actions were reasonable under the circumstances. Additionally, while a discourteous statement could be heard on available Body-worn camera video, it is unclear who made the statement, and it would be unfair to attribute the statement to Police Officer Trap without additional corroborating evidence.

Based on the totality of the circumstances, the Police Commissioner intends to dismiss the charges and specifications in Disciplinary Case No. 2023-27836 and impose no disciplinary action in connection with this matter. Additionally, the Police Commissioner intends to penalize Police Officer Trap twenty (20) vacation days for the charged misconduct in Disciplinary Case Nos. 2021-23968 and 2022-26462.

Sincerely,

A handwritten signature in dark ink, appearing to read 'Anthony S. Marino', with a long horizontal flourish extending to the right.

Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office

cc: John Tynan, Esq.



ERIC L. ADAMS
MAYOR

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ARVA RICE
INTERIM CHAIR

January 8, 2024

The Honorable Edward A. Caban
Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: CCRB Case No. 202106300 (Incident Date: October 16, 2012) involving Police Officer Jesse Trap, Tax No. 960033 (DADS No. 2023-27836)

Dear Commissioner Caban:

I am writing in response to the letter from Deputy Chief Anthony S. Marino, dated January 2, 2024. Pursuant to Paragraph 6 of the April 2, 2012, Memorandum of Understanding between CCRB and the New York City Police Department (hereinafter referred to as the “MOU”), I am responding to Deputy Chief Marino’s notification.

Deputy Chief Marino stated that after reviewing the Civilian Complaint Review Board’s (CCRB) recommended penalty, you intend on dismissing the charges and specifications in this matter and imposing no disciplinary penalty on Officer Trap, as you determined Officer Trap’s action in using force against the civilian to be “reasonable” and further determined that there was insufficient evidence to attribute the discourteous statement to Officer Trap.

We disagree with the Police Commissioner’s determination that Officer Trap’s conduct in pushing the civilian was reasonable and that the evidence did not establish that it was Officer Trap who uttered the discourteous statement. On October 24, 2023, in front of Assistant Deputy Commissioner Anne E. Stone, Officer Trap pled guilty to the Charges and Specifications and agreed to receive the penalty of the forfeiture of twenty vacation days, with that penalty to run concurrently to the penalties received in DADS Nos. 2021-23968 and 2022-26462. Therefore, Officer Trap has already pled guilty to the charges, including the discourtesy charge, after informing Assistant Deputy Commissioner Anne E. Stone that he understood the terms of the agreement, and that he was entering the agreement willingly after consulting with his attorney.

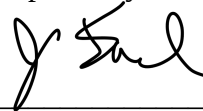
The evidence in this matter established that the brother of an individual who had been arrested was given permission by a Lieutenant to approach the police vehicle in which his

brother had been placed. The BWC established that Officer Trap was present when this permission was given by his superior officer. Despite this, when the brother approached the vehicle, Officer Trap pushed him away. This was an unreasonable use of force against a civilian who had been given permission by a superior officer to approach the vehicle next to which Officer Trap was standing, and nothing that the brother was doing justified this use of force.

Furthermore, Officer Trap was caught on two BWC's stating, "back the fuck up..." to the civilian that he pushed. Officer Trap's voice can be clearly heard on his BWC throughout the incident and his voice is unmistakably the same voice that can be heard making the discourteous statement.

The CCRB would ask the Police Commissioner to accept the CCRB's recommendation and penalty that was agreed to by Officer Trap and impose upon Officer Trap the penalty of the forfeiture of twenty vacation days, with that penalty to run concurrently to the penalties received in DADS Nos. 2021-23968 and 2022-26462.

Respectfully submitted,

A handwritten signature in black ink, appearing to read "J. Darche", written over a horizontal line.

Jonathan Darche
Executive Director
NYC Civilian Complaint Review Board